SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 6239 of 2019 (YEAR: 2019)

CORAM: U.U. LALIT, INDU MALHOTRA

Pioneer Urban Land and Infrastructure Ltd.
... Appellant(s) / Petitioner(s)
Versus
Govindan Raghavan
... Respondent(s)

Acts Referred:	Consumer Protection Act, 1986, Indian Contract Act, 1872
Sections:	Section 2(1)(g) Consumer Protection, Section 23 Contract Act

JUDICIAL HEADNOTE & SUMMARY

Held that builder-buyer agreements containing one-sided and unfair conditions cannot be enforced against homebuyers, constituting an unfair trade practice.

RATIO DECIDENDI

The Court held that: Held that builder-buyer agreements containing one-sided and unfair conditions cannot be enforced against homebuyers, constituting an unfair trade practice. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Pioneer Urban Land and Infrastructure Ltd. v. Govindan Raghavan (Civil Appeal No. 6239 of 2019) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Consumer Protection Act, 1986, Indian Contract Act, 1872, particularly Section 2(1)(g) Consumer Protection, Section 23 Contract Act. Held that builder-buyer agreements containing one-sided and unfair conditions cannot be enforced against homebuyers, constituting an unfair trade practice.

OPERATIVE ORDER

ORDER: Decided